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#	Case Name	Tentative
0.	2025-1514475 Toner vs. Aurora Heights, LLC	<i>No tentative. The Court has questions for counsel. Counsel are ordered to arrange for a court reporter to be present for the hearing.</i>
1.	2024-1383020 Bigalimov vs. Alsulaiman	Plaintiff Rolan Bigalimov's motion for reconsideration is denied. Plaintiff moves for reconsideration of the 2/25/26 minute order (ROA 131), whereby the Court denied Plaintiff's motion to set aside or vacate the "order of dismissal" taken from Plaintiff's ruling on Defendants' demurrer to Plaintiff's First Amended Complaint (ROA 84). When an application for an order has been "refused in whole or in part," a party seeking reconsideration under subsection (a), can make an application to "modify, amend, or revoke the prior order." The application must be made "to the same judge or court" within "10 days after service upon the party of written notice of entry of the order." The application must be "based upon new or different facts, circumstances, or law." Additionally, the application must be accompanied by an affidavit, stating "what application was made

before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008, subd. (a).)

Here, the Court notes that it lacks jurisdiction to grant reconsideration of the 02/25/26 minute order, because an Order of Dismissal was entered on or about 01/05/26 (ROA 124). A court loses jurisdiction to grant reconsideration once an order of dismissal (or a judgment) has been entered. (*APRI Ins. Co. v. Superior Court* (1999) 76 Cal.App.4th 176, 181 “we conclude that the trial court may not grant reconsideration after judgment has been entered”). The Court’s order of dismissal constitutes a judgment. (*Ibid.*)

Second, even if the Court retained jurisdiction to grant reconsideration, Plaintiff fails to present any new or different facts, circumstances, or law that warrant reconsideration. Plaintiff’s argument amounts to “the court misconstrued the (existing) law.” (The Court omits the less respectful choice of words that Plaintiff used in his motion.) However, reconsideration “cannot be granted based on claims the court misinterpreted the law in its initial ruling (as opposed to a change in the law in the interim.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 9:330.2, citing *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

The Court emphasizes, though, that it rejects Plaintiff’s contention that the ruling at issue is incorrect. In the ruling on the demurrer to the FAC, Plaintiff was given leave to amend as to the claims for intentional infliction of emotional distress and defamation/slander/libel. (ROA 84.) Thereafter, Plaintiff filed the SAC whereby he re-alleged his claims for defamation, slander, and libel, as well as intentional infliction of emotional distress. (ROA 96.) If Plaintiff had wanted the ruling on the demurrer to the FAC to become the equivalent of a final judgment, then his “remedy” was to elect *not* to amend (i.e., not file a FAC). (*National Union Fire Ins. Co. of Pittsburgh, PA v. Cambridge Integrated Services Group, Inc.* (2009) 171 Cal.App.4th 35, 44.) Because Plaintiff *elected* to amend, the court’s ruling on the demurrer to the FAC did not become a final judgment. While the Court did eventually enter an order of dismissal, this was following Defendants’ demurrer to the SAC (not the FAC).

Finally, plaintiff’s disagreement with prior rulings does not justify unsupported accusations concerning the integrity or motives of judicial officers. The Court has disregarded those accusations and ruled on the legal merits of the motion. Defendants shall give notice of the ruling.